

TurnUP California 2022 abortion proposition 1

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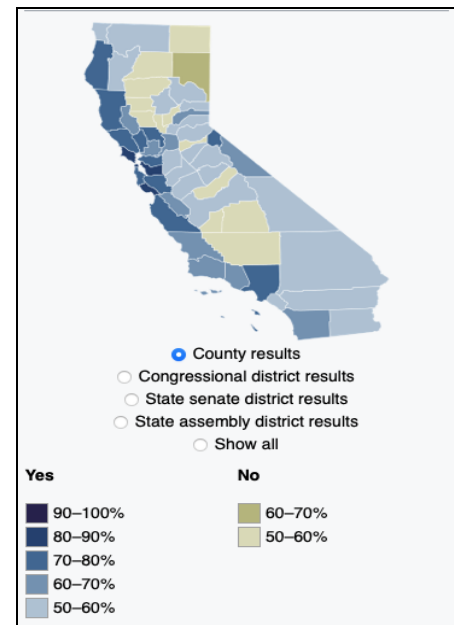
Overview



On November 8th of 2022, the *Constitutional Right to Reproductive Freedom*, a push to make that the state cannot "deny or interfere with an individual's reproductive freedom in their most intimate decisions," was added as an addition to the regular Presidential election. That day, a grand total of 67% of voters were in favor of the *Senate Constitutional Amendment 10* (SCA 10), the formal name of the amendment in question. With a margin of 34%, this bill was passed, going into effect December 21st, 2022. It lapsed the end of an era; it put forth a time of reproductive freedom, not just in California, but nationwide. The bill originated in May of the same year. California's senate passed it June 20th 29-8, followed by the State Assembly passing it 58-17 just one week after the Senate did. For the first time since 2008, California changed its reproductive laws. Supported by mostly democrats, feminists, medical organizations, labor unions, and newspaper board members, this bill was met with widespread public support across California. On the contrary, another similar bill, Proposition 4, an initiative that would have imposed a waiting period on abortions and required parental notification in the case of minors, was not passed. The bill, although having many reasons for being passed, was influenced heavily by the Roe vs Wade case, Pre-Dobbs California Law, and the Reproductive Act of 2002.

History

The roots of abortion spread far and wide; dating back to 1850, the first ever abortion laws were set in place. The first ever law mandated abortion illegal unless interfering with the woman's life. This simple rule was in effect for over 100 years. Although simple, it was not valued. Former president Ronald Reagan, at the time governor of California, extended the right of legal abortion, validating abortion for rape and incest up to 20 weeks after conception. The rules were often bent for many cases, seen in the *People vs Belous* case of 1969, where the The California Supreme Court allowed an abortion, letting the people bypass section 274 of the California Penal Code, a section dedicated to the punishments



if one was to abort illegally. There was a hazed line for abortion. Did the people know what they wanted? Three short years later, Proposition 11 was passed, which, for formalities, provided confidentiality towards people who chose to abort. While all of this was going on, there had been no previous mention of minors. 1987 was when that changed, with the first laws regarding minors and abortion being enacted. It barred abortion without parental consent, but with the same clause as the first bill passed: medical emergencies provided exemption from this rule. However, all prior development was reset when Governor Gray Davis signed a bill deeming abortion illegal after fetal viability, all with the same clause as before. It came down to a debate over ethics. Lives, both dead and alive, were put at risk. All circled around the major question: is it constitutional to allow the purposeful removal of unborn children? No major changes occurred

between the timeframe of the past major change and this one. On the contrary, the courts were under major pressure. One of the most prevalent cases, *Roe vs Wade*, took place in 2021. It was the pinnacle of abortion rights. The outcome of the case began a new dawn of pregnancies. Experts claim, after this case, “California's main intention was to become a sanctuary state for abortion rights.” It marked a new time for California along with the rest of the USA.

Reason for the bill

Abortion proposition 1 had many heavy influences, such being: *Roe Vs. Wade*, *Planned Parenthood Vs. Casey*, along with many other, much smaller, cases. Both major cases mentioned were overturned, thus leading to the creation of Proposition 1. Specifically, it shaped the



viewpoints of senators into creating reasons for change. This change, being what we now call *Senate Constitutional Amendment 10*. People flooded into Southern California in order to start their own families. Planned parenthood was at an all time high, rising up over 800% in states such as Arizona.

However, due to abortions still being Illegal in Arizona, many clinics were set up along Arizona’s western border. An increase of almost 1.4 million abortions was present in California alone. In 2022, California, along with Kansas, Kentucky, Michigan, Montana, and Vermont all had abortion-related ballot measures. It was the start of a new era. However, regulations were only passed in Michigan and Vermont, along with California. Surprisingly, the bills that passed all favored the legalization of abortions to some extent. The three states that wanted to mitigate abortions, Kentucky, Kansas, and Montana, all had failing propositions. Experts claim this was

due to, “A new sensation of safety in planned pregnancies across the country.” One thing was for certain: women’ reproductive rights are on a bright path. Ultimately, the path to parental freedom is becoming a lot less enigmatic.

Results

With over 10 million voters present, Proposition 1 was passed with 7.1 million people in favor versus 3.5 million against. Almost twice the number of people who voted for this to fail voted for the bill to pass. On December 21st, this bill was officially set into place, simultaneously sparking joy across most of California. While the vote was not unanimous, most counties that opposed won only by a slight margin. For example, Lassen county reportedly was the only county to have over 60% of its voters oppose the bill. Thus, out of the 13 opposed counties, 12 counties had their margin of difference under 20%. Congressional districts, similarly, only had 3 districts vote against the bill, with none of them having a margin of difference over 15%. Out of the 12 republic districts, 9 of them voted in favor of passing the bill. While votes were not unanimous, parties that opposed the bill had a very small gap in the people who voted for and the

OFFICIAL BALLOT SAN DIEGO COUNTY, CALIFORNIA STATEWIDE GENERAL ELECTION NOVEMBER 8, 2022	
MEASURES SUBMITTED TO THE VOTERS STATE	STATE
PROP 1 CONSTITUTIONAL RIGHT TO REPRODUCTIVE FREEDOM. LEGISLATIVE CONSTITUTIONAL AMENDMENT. Amends California Constitution to expressly include an individual's fundamental right to reproductive freedom, which includes the fundamental right to choose to have an abortion and the fundamental right to choose or refuse contraceptives. This amendment does not narrow or limit the existing rights to privacy and equal protection under the California Constitution. Fiscal Impact: No direct fiscal effect because reproductive rights already are protected by state law. ☐ YES ☐ NO	PROP 27 ALLOWS ONLINE AND MOBILE SPORTS WAGERING OUTSIDE TRIBAL LANDS. INITIATIVE CONSTITUTIONAL AMENDMENT AND STATUTE. Allows Indian tribes and affiliated businesses to operate online/mobile sports wagering outside tribal lands. Directs revenues to regulatory costs, homelessness programs, and other public safety programs. Fiscal Impact: Increased state revenues, primarily in the hundreds of millions of dollars but not likely to exceed \$500 million annually. Some revenues would support state regulatory costs, possibly reaching the hundreds of millions of dollars annually. ☒ YES ☐ NO
PROP 26 ALLOWS IN-PERSON ROULETTE, DICE GAMES, SPORTS WAGERING ON TRIBAL LANDS. INITIATIVE CONSTITUTIONAL AMENDMENT AND STATUTE. Also allows sports wagering at certain horse racing tracks, private venues to enforce certain gaming laws. Directs revenues to General Fund, program/agency programs, enforcement. Fiscal Impact: Increased state revenues, possibly reaching tens of millions of dollars annually. Some of these revenues would support increased state regulatory and enforcement costs that could reach the low tens of millions of dollars annually. ☒ YES ☐ NO	PROP 28 PROVIDES ADDITIONAL FUNDING FOR ARTS AND MUSIC EDUCATION IN PUBLIC SCHOOLS. INITIATIVE STATUTE. Provides additional funding from state General Fund for arts and music education in all K-12 public schools (including charter schools). Fiscal Impact: Increased state costs of about \$1 billion annually, beginning next year, for arts education in public schools. ☐ YES ☐ NO

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people who voted against. California, once a state that opposed abortions, is now a marker and symbol of hope and freedom in the US. California exemplifies how a state can change over time.

Aftermath

Democrats wearing pink cheered through the streets as it was announced the bill was to be passed. “Californians didn’t just vote to protect abortion - they showed up to make it clear: abortion is a fundamental right,” Atkins and Hicks stated. Truly, Californians had the power; not the government. The No campaign had representatives discuss how the "nation's most extreme abortion amendment“ would cost millions in taxpayer money. There was one final hope for the No campaign: the courts. Unfortunately for them, California’s state courts favored the legislation, thus passing it and giving its way into California law. Michigan and Vermont followed in the footsteps of California, passing similar bills in the same month. The American Civil Liberties Union took quick note of this change and is working to create unity for abortion laws across all 50 states. They hope to start with the following states: Arkansas, Florida, Missouri, Ohio, Oklahoma, and South Dakota, all with the hope to imitate Proposition one in California. However, other experts claim, “ National abortion ban remains a possibility, even after California's passing of

Proposition 1, if republicans regain full control of the federal government in 2024.” However, even red states are unable to pass legislation to ban abortion. Every person matters in this



vote.” If republicans are unable to pass legislation in one state” Martha Davis, a law professor at Northwestern University, adds, “ it will be even more difficult for Republicans in Congress to legislate federal restrictions that undermine and override proposition 1 in other states.” With the Supreme Court favoring Roe, it truly shows that abortion is controlled by the people, not the government. To further California's stance, in 2023, California added even more abortion-related legislation made to entrench reproductive rights. Two bills passed, one to stop insurance companies from inflicting penalties to people who choose to abort, and another to change the wording of all pregnancy-related bills to go from pregnant women to pregnant people in order to shine light on the LGBTQ community. California, along with the rest of America, is moving to a time of liberation, a time of speaking up, a time of freedom.

Wrap Up

While this topic remains controversial, I, as an individual, hold no specific point of view on it. There is a valid argument to either allow it and to keep it banned. A clear line is not traceable, and volatility will always be there. A clear side



is not necessarily correct in this battle. As we know of now, Trump does not support the thought of abortion, creating worry in some states, including California. One thing is clear though; it's the people who truly choose, not the government. In conclusion, Proposition 1 is a monumental symbol to show that change is possible, even against oppressive regimes. It sparked change across the nation, and it symbolized the dawn of a new era; we are in a time where our voice is

heard, not the wants of higher ups. Whether it is agreed upon or not, legalizing abortion is what we the people have collectively decided upon.